

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 16, 2019

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:30 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Mr. Cook, Mr. Laybourn, Dr. Rinne, Mr. Roybal, and Mr. Shanor. Absent: Mr. Case, Mr. Esquibel, Mr. Luna, and Mr. White. Also present: Kris Jones, City Clerk; Alessandra Fakelman, Senior Assistant City Attorney; Ron Downey, Deputy Human Resources Officer, Robin Lockman, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded and available on Facebook live. Mayor Orr explained it is the governing body's intention to go into executive session for the purpose of evaluating proposed remaining sections.

Mayor Orr advised the City is in agreement to sign off on Sections #32, 33, and 44.

Bill Hinz, Union President, advised the Union proposes the following: Section 4-agreement with a 2 year contract term, Section 15-add 3 members from 88 to 91 in FY 2020 and 3 additional from 91 to 94 in FY 2021, increasing shift levels from 26 to 27 for FY 2020 and from 27 to 28 for FY 2021, all beginning on July 1st of each year, Section 17-remain an open working section, Section 18-accept City's language amendment, Section 20-Present Contract Language (PCL), Section 21-reducing work hours per week from 56 to 52 and 3.5% wage increases for both FY 2020 and 2021 beginning July 1st of each year, Section 22-request 480 hours of E.O.D compensatory time instead of 240 hours, Section 23 letter F-changing the acting roster for Day Personnel positions to four years instead of three, and in Section 27-add Battalion Chief of the Shift in Section G and adjust vacation hours in Section J, and Section 28-awarding day personnel the same amount of sick time as line personnel 960 working hours.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Roybal moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, Senior Assistant City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 6:52 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:56 p.m. Mayor Orr advised the City proposes the following: Section #4-leave open as a working document, Section #15-decline and counter with PCL, Section #18-accept the change of battalion Chief or designee and add "earned benefit" in the last sentence following the word "money",

Section #20-decline and reoffer City's last counter offer, #21-decline Union counter and reoffer PCL with the following changes: A 1.5% increase to PCL for the first year, a 1.5% increase for year two only if the total annual overtime in year one is less than \$525,000.00, Section #22-decline and reoffer the PCL with the following changes: Striking under Section A (b), striking overtime while worked on vacation, striking the last sentence on page 38 "all personnel shall be granted their choice of overtime pay or E.O.D. compensatory time off at the rate of 1½ hours off for each hour worked", declining the strike through of 216 hours, compensatory time will be 240 hours, this maximum accrual applies to any balance of E.O.D. compensatory time including but not limited to amount earned from committee work, by striking overtime holiday pay and then any E.O.D. compensatory time over 240 hours must be taken during the calendar year, for the purposes of scheduling adding the following language-"only one E.O.D. slot may be filled prior to sick call, additional slots may be granted after determining the minimum manning will not be impacted and no overtime will be required", and on page 38 striking the following sentence- "If a Member reschedules a vacation day within seventy two hours of a shift, the Member will not be allowed to take an overtime on that day", Section #23-decline and reoffer last City's counter offer, Section #27- decline and reoffer last City's counter offer, and Section #28-decline and reoffer City's last counter offer.

Upon request from Mayor Orr, Robin Lockman, City Treasurer, provided clarification regarding retirement benefits and calculation formulas relating to use of Worker's Compensation according to State Statute.

Following discussion regarding future meeting dates, Mayor Orr announced the next meeting will be held on Tuesday, March 19, 2019 from 6:00 PM to 8:00 PM in Council Chambers, 2101 O'Neil Ave.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 8:10 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 23, 2019